

Tentative Rulings for September 22, 2026 Department PS2

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 644 5616**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

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1.

CASE #	CASE NAME	HEARING NAME
CVPS2407396	MAXFIELD VS FORD MOTOR COMPANY	MOTION FOR SUMMARY ADJUDICATION ON 1ST AMENDED COMPLAINT OF MARY MAXFIELD BY FORD MOTOR COMPANY

Tentative Ruling: Granted.

Summary adjudication is granted as to 6th cause of action for fraud.

Moving defendant to provide notice pursuant to CCP 1019.5.

This is a lemon law action. On November 19, 2024, Plaintiff Mary Maxwell (“Plaintiff”) filed a Complaint against Defendants Ford Motor Company (“FMC”) and Finn Ford (together “Defendants”) asserting causes of action for (1) violation of Civ. Code § 1793.2(d); (2) violation of Civ. Code § 1793.2(b); (3) violation of Civ. Code § 1793.2(a)(3); (4) breach of the implied warranty of merchantability; (5) negligent repair; and (6) fraudulent inducement – concealment. On March 4, 2025, the Court sustained FMC’s demurrer to the 6th cause of action for fraudulent inducement – concealment with 10 days leave to amend.

On March 14, 2025, Plaintiff filed the operative First Amended Complaint (“FAC”) against FMC, asserting the same six causes of action. In the FAC, Plaintiff alleges that on May 9, 2022, she entered into a warranty contract with FMC concerning a 2022 Ford F-150 (the “Vehicle”). (FAC at ¶ 7.) The Vehicle exhibited symptoms associated with a transmission defect that impaired the use and/or drivability of the Vehicle, including harsh shifting, gear slippage, shuddering, hesitation during acceleration, and jolting forward when stopping. (FAC at ¶ 10.) Plaintiff presented the vehicle to FMC’s authorized repair facility, but FMC failed to conform the vehicle to the applicable warranty within a reasonable number of attempts. (FAC at ¶ 11.)

FMC now moves for summary adjudication of the 6th cause of action for fraudulent inducement – concealment, arguing that Plaintiff cannot establish this cause of action because (1) she cannot show that FMC had knowledge of a defect at the time of sale; (2) she cannot establish that FMC had a transactional relationship with Plaintiff that triggered its duty to disclose; and (3) it is barred by the economic loss rule.

No opposition filed.

Summary Judgment/Adjudication

Summary judgment is granted when a moving party establishes the right to entry of judgment as a matter of law. (C.C.P. § 437c(c).) A defendant moving for summary judgment bears the initial burden of proving that there is no merit to a cause of action by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to that cause of action. (C.C.P. § 437c(p)(2); *Cucuzza v. City of Santa Clara* (2002) 104 Cal.App.4th 1031, 1037.) Importantly, a moving defendant establishes a right to summary judgment by showing that the plaintiff lacks the evidence to support at least one element of the cause(s) of action pleaded. (*Cole v. Town of Los Gatos* (2012) 205 Cal.App.4th 749, 756. See also *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 855.)

Once the defendant has made such a showing, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or as to a defense to the cause of action. (*Aguilar, supra*, 25 Cal.4th at 849.) The opposing party may not rely upon the allegations or denials in its pleadings, but must “set forth the specific facts showing that a triable issue of material fact exists.” (C.C.P. § 437c(p)(2).) Claims and theories not supported by admissible evidence do not raise triable issues of fact. (*Rochlis v. Walt Disney Co.* (1993) 19 Cal.App.4th 201, 219, disapproved on another ground in *Turner v. Anheuser–Busch, Inc.* (1994) 7 Cal.4th 1238.) However, while summary judgment is no longer considered a “disfavored” procedure, the moving party’s evidence must be strictly construed, while the opposing party’s evidence must be liberally construed. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 838.) If the plaintiff does not meet his burden of establishing a triable issue of material fact, summary judgment in favor of the defendant is appropriate.

6th Cause of Action – Fraud

The elements of a cause of action for fraud based on concealment are:

- (1) The defendant must have concealed or suppressed a material fact; (2) the defendant must have been under a duty to disclose the fact to the plaintiff; (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact; and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.

(*Kaldenbach v. Mutual of Omaha Life Ins. Co.* (2009) 178 Cal.App.4th 830, 850, internal quotation marks omitted.)

In seeking summary adjudication of this cause of action, FMC argues that Plaintiff cannot establish that FMC had knowledge of any defect at the time of sale; it had no duty to disclose; and the economic loss rule bars recovery.

1. Prior Knowledge of Defects

Ford first argues that Plaintiff cannot prove it had knowledge of any material fact related to the alleged transmission defect prior to Plaintiff’s purchase of the Vehicle. The issue in a lemon law case is when the defendant knew of the defect. As one court has explained, the distinction between a fraud claim and Song-Beverly claim, is the fraud claim depends on evidence prior to the purchase, whereas the Song-Beverly claim depends on evidence during the warranty period. (*Santana v. FCA US, LLC* (2020) 56 Cal.App.5th 334, 345.)

“[A] moving defendant may rely on factually devoid discovery responses to shift the burden of proof pursuant to section 437c, subdivision (o)(2) [now subdivision (p)(2)]. Once the burden shifts as a result of the factually devoid discovery responses, the plaintiff must set forth the specific facts which prove the existence of a triable issue of material fact.” (*Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590.) The moving party’s burden is to demonstrate a negative – that there is no evidence to support an element of the opponent’s case. (*Rio Linda Unified School Dist. v. Superior Court* (1997) 52 Cal.App.4th 732, 739.) “The defendant must show that the plaintiff does not possess needed evidence, because otherwise the plaintiff might be able to establish the elements of the cause of action; the defendant must also show that the plaintiff *cannot reasonably obtain* needed evidence.” (*Aguilar, supra*, 25 Cal.4th at 854 [italics in original].)

Here, FMC shows by Plaintiff’s discovery responses that Plaintiff has no evidence that FMC had knowledge of a defect in her Vehicle at the time of sale. Specifically, in response to an

interrogatory requesting that Plaintiff “describe in detail all information that forms the basis for YOUR allegations that ‘prior to Plaintiff acquiring the vehicle [Ford] was well aware and knew that the transmission installed in the vehicle was defective but failed to disclose this fact to Plaintiff at the time of sale or thereafter[,]’” Plaintiff responded as follows: “Defendant knew about the Transmission Defect, and its safety risks, Defendant nevertheless concealed and failed to disclose the defective nature of the Vehicle and its transmission to Plaintiff at the time of sale, repair, and thereafter... Prior to purchasing the Vehicle, [she] visited Ford’s authorized dealership website, looked at 2022 Ford F-150 Vehicles, reviewed promotional materials available at the dealership, reviewed the window sticker of the Subject Vehicle, test drove the Subject Vehicle, and spoke with dealer salespeople about the Vehicle... At no point before purchasing the Vehicle did FORD or its authorized dealership personnel disclose that vehicles equipped with the same 10-speed transmission as the Vehicle suffered from one or more defects that can cause the vehicles and their 10-speed transmissions to experience hesitation and/or delayed acceleration; harsh and/or hard shifting; jerking, shuddering, and/or juddering, making the vehicle susceptible to sudden and premature failure.” (UMF # 8; Pisciotta Decl., Ex. 3, no. 65.) In her response to an interrogatory asking her to identify documents supporting the allegation, Plaintiff stated that she “is not in possession of any documents related to Defendant’s marketing materials, advertisements, internal knowledge and investigation documents. Plaintiff is alleging fraudulent concealment – inducement, accordingly, Defendant has exclusive knowledge and possession of documents not available to consumers.” (UMF # 9; Pisciotta Decl., Ex. 3, no. 66.) Further, Plaintiff’s 41-page document production consists only of a copy of the sales contract, the Vehicle’s repair orders, insurance documents, the Vehicle’s registration, and photos showing Plaintiff’s payment history for her loan on the Vehicle, and Plaintiff confirmed in her deposition that she produced all documents in her possession supporting the allegations in her FAC. (UMF ## 11-12, Pisciotta Decl., Ex. 2.)

Based on the above, FMC has met its burden of establishing that Plaintiff has no evidence showing that FMC knew of a defect in Plaintiff’s Vehicle at the time of sale. To the contrary, Plaintiff’s reliance on the Vehicle’s repair orders underscores that Plaintiff’s fraud claim is nothing more than a restated breach of warranty claim resulting from the fact that Plaintiff’s vehicle experienced some issues after the purchase. Therefore, the burden shifts to Plaintiff to submit evidence creating a triable issue of material fact. Since Plaintiff did not oppose the motion or present any evidence, she fails to meet this burden.

2. Duty to Disclose

FMC also argues that this cause of action fails because Plaintiff cannot establish a relationship creating a duty to disclose.

To maintain a cause of action for fraud through nondisclosure or concealment of facts, there must be allegations demonstrating that the defendant was under a legal duty to disclose those facts. (*Los Angeles Memorial Coliseum Commission v. Insomniac, Inc.* (2015) 233 Cal.App.4th 803, 831.) There are four circumstances giving rise to a duty to disclose: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant has exclusive knowledge of material facts not known to plaintiff; (3) when defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 336, internal quotations omitted.) “A duty to disclose supporting fraud liability for...concealment may arise from the relationship between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement.” (*Los Angeles Memorial Coliseum Commission, supra*, 233 Cal.App.4th at 831.) A relationship between the parties is present if there is “some sort of transaction between the parties,” i.e., between a seller and buyer, employer and prospective employee, doctor and patient, and parties to a contract. (*Id.*; *Bigler-Engler v. Breg, Inc.* (2017) 7

Cal.App.5th 276, 311-312 [absent a fiduciary duty, there must be evidence of some transaction, i.e., direct dealings between the plaintiff and the defendant].)

In *Rattagan v. Uber Technologies, Inc.* (2024) 553 P.3d 1213, 1238, the California Supreme Court recently confirmed that the transactional relationship required to state a fraudulent concealment claim requires direct dealings between plaintiff and the defendant. “Such a transaction must necessarily arise from direct dealings between the plaintiff and defendant; it cannot arise between the defendant and the public at large.” (*Rattagan, supra*, 553 P.3d at 1238, citing *Bigler-Engler, supra*, 7 Cal.App.5th at 312.)

Here, FMC submits evidence that Plaintiff purchased the Vehicle from Cypress Ford; Cypress Ford is not an agent of FMC; she had no communications with FMC; and her purchase of the Vehicle was not based on any advertising by FMC. (UMF ## 1-3, 7, 14.) These facts are sufficient to meet FMC’s burden of establishing there was no transactional relationship between it and Plaintiff triggering a duty to disclose.

As Plaintiff did not oppose this motion, she fails to meet her burden of creating a triable issue of material fact, so the motion must be granted.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2404433	WIPF VS DESERT SANDS UNIFIED SCHOOL DISTRICT	HEARING ON MOTION FOR SUMMARY ADJUDICATION ON 2ND AMENDED COMPLAINT OF MARK WIPF BY DESERT SANDS UNIFIED SCHOOL DISTRICT, DENNIS ZINK, SARIT SAIG

Tentative Ruling: Denied.

Responding Plaintiffs to provide notice pursuant to CCP 1019.5.

This is an employment matter. Mark Wipf (“Plaintiff”) is employed by the Desert Sands Unified School District (“District”). He was hired in 2006 to teach Advanced Placement (“AP”) Government classes. He contends in November 2018 he received his first written reprimand for using a video that someone complained about. While the Curriculum Director wrote Plaintiff up and found the video inappropriate, she admitted at the meeting to never actually viewing the video. He received another reprimand in February 2021 but was not given any facts regarding his alleged bad conduct and no due process to check the allegations. In May 2021, he contends that he was vindictively demoted by Dennis Zink (“Zink”) and reassigned to teach regular world history. He alleges that his demotion was for the improper purpose to try and inflate the AP government scores, so the school would have the higher test scores than any other high school in the District. Plaintiff alleges that Zink and Sarit Saig (“Saig”) imposed higher standards on him than they did on other world history teachers. In March 2024, Plaintiff contends that Saig issued Plaintiff a written reprimand for unprofessional conduct. He contends the reprimand was based on false allegations and was done intentionally and maliciously to create a false case against Plaintiff for further demotion, termination, or cause him to resign. These conduct was allegedly done due to Plaintiff, age, national origin, and gender.

The operative pleading is the Second Amended Complaint (“SAC”). It contains the following causes of action: (1) discrimination based on race/national origin/ancestry, age, and gender/sex; (2) harassment based on race/national origin/ancestry, age, and gender/sex; (3) failure to prevent discrimination and harassment; (4) retaliation; (5) hostile work environment; and (6) libel.

Defendants Zink and Saig bring this motion. They seek summary adjudication of the request for punitive damages against these defendants and the sixth cause of action for libel. They argue that there are no facts or evidence that Zink and Saig acted with malice or oppression to support punitive damages. They contend they are immune from liability for punitive damages under Government Code § 818. They argue the sixth cause of action for libel fails because his in-classroom performance evaluation consisted of opinion, which is not actionable; employee evaluations are privileged; and Plaintiff does not plead malice.

In opposition, Plaintiff contends that there is a triable issue of material facts as to whether punitive damages are appropriate. Plaintiff argues that the sixth cause of action for libel is valid. He asserts that it is not based on opinion regarding performance but on false factual allegations made in the written reprimand, which is not opinion. He contends that Civil Code § 47 is not applicable. He asks for leave to amend if the Court is inclined to grant the motion.

Summary Judgment

A motion for summary judgment attacks the entire pleading. To grant a motion for summary judgment, the moving party must be entitled to judgment in its favor. (CCP § 437c(c).) A motion for summary adjudication pertains to one or more cause of action, affirmative defense, claim for damages, or issue of duty. (CCP § 437c(f)(1).) If a motion for summary adjudication is granted, the matter will continue to proceed to trial on the remaining issues. A defendant meets her burden in a motion for summary judgment/adjudication by doing one of the following: (1) presenting affirmative evidence negating an essential element of plaintiff's cause of action; (2) showing a complete defense; or (3) showing that plaintiff does not possess and cannot reasonably obtain needed evidence. (CCP § 437c(p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826.) When a defendant has met her burden, it then shifts to plaintiff to show that a triable issue of fact exists.

Procedural Issue(s)

Motions for summary judgment and summary adjudication must include a separate statement as part of their moving papers. (CCP § 437c(b)(1).) The separate statement must set "forth plainly and concisely all material facts that the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence. The failure to comply with this requirement of a separate statement may in the court's discretion constitute a sufficient ground for denying the motion." (*Id.*) A separate statement is required to separately identify:

- (A) Each cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion; and
- (B) Each supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty or affirmative defense that is the subject of the motion.

(California Rules of Court, rule 3.1350(d)(1).) It is required to be in a two-column format, which states in numerical sequence the undisputed material fact and evidence establishing the undisputed facts in the first column. (*Id.* at (d)(3).)

As pointed out by Plaintiff in opposition, the separate statement only addresses the facts pertaining to the request for punitive damages. It addresses punitive damages twice, in section A and B of the separate statement. This appears to be a scrivener's error.

Evidentiary Objection(s)

Plaintiff objection Nos. 3 and 6 are overruled.

Punitive Damages

Plaintiffs may recover exemplary or punitive damages where it is proven that “the defendant has been guilty of oppression, fraud or malice.” (California Civil Code §3294(a).) Malice is defined as “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civil Code §3294(c)(1).) Despicable conduct has been defined as bile, base or contemptible conduct. (*College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.) Oppression is despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights. (Civil Code §3294(c)(2).) Fraud includes intentional misrepresentations, deceit and concealment of material facts. (*Id.* at (c)(3).)

Defendant Zink

The only cause of action asserted against Zink is the second cause of action. It is based on allegations that Zink improperly removed Plaintiff from his AP position and reassigned him to teach another subject; required Plaintiff to submit weekly lessons plans, which signaled to his peers that he was untrusted; and manipulated Plaintiff’s performance rating to create a misleading record. (SAC, ¶¶ 52-54.) The SAC also alleges that Zink also intentionally assigned him to an unfavorable teaching schedule with no breaks, which he knew would be harder for an older teacher to do. (SAC, ¶ 19.) It is alleged that Zink also intentionally required Plaintiff to attend peer meetings to teach him how to teach, after he had been teaching for 40 years, in an attempt to damage and destroy his professional reputation. (SAC, ¶ 20.)

Moving Defendants contend that the reassignment of Plaintiff out of AP classes and into world history classes does not support malice or oppression because Plaintiff was not reassigned for an improper purpose but due to declining enrollment in the AP class and low passage rate of the AP examination. With the moving papers, Zink provides a declaration that indicates that from 2018-2021, the District had become concerned about Plaintiff’s instructional delivery, willingness to follow adopted curriculum, and ability to effectively prepare students to take and pass the AP examination. (Declaration of Dennis Zink, ¶ 6.) His student’s participation in the AP exam had declined. (*Ibid.*) In May 2021, he rated unsatisfactory in the area of creating and maintaining effective environments for student learning and needs to improve in the area of understanding and organizing subject matter for student learning. (*Ibid.*) The District believed that Plaintiff would be more effective in a world history assignment than in his AP assignment. (*Ibid.*) Zink asserts that he did not take any different or unusual steps with Plaintiff in the process of reassigning him and it was done to ensure the school site was effectively providing academic services to the student population. (*Id.* at ¶ 9.) Zink asserts that this was not a demotion. (*Ibid.*) This evidence would be sufficient to meet Zink’s initial burden, if the only allegations pertaining to Zink were the demotion. However, the SAC also alleges that Zink engaged in other conduct to humiliate Plaintiff – like requiring him to submit weekly lesson plans and improperly manipulated his performance rating to create a misleading record. Zink does not address these remaining allegations in the SAC regarding Zink. He also does not argue that these remaining arguments are not sufficient to establish malice, oppression, or fraud. Due to this, Zink has not met his initial burden regarding punitive damages. DENIED.

Defendant Saig

The second and sixth causes of action are asserted against Saig. It is alleged that she knowingly presented Plaintiff with a fabricated and defamatory evaluation in February 2024 that was filled with false accusations that Saig knew were inaccurate. (SAC, ¶¶ 51 and 80.) It is alleged that Saig improperly issued a written reprimand based on the fabricated claims asserted in the February 2024 evaluation. (*Ibid.*) The SAC also alleges that Saig intentionally required Plaintiff to turn in weekly lesson plans and attend peer meetings to teach him how to teach in an attempt to destroy his professional reputation. (*Id.* at ¶¶ 19 and 20.) She also allegedly assigned him an unfavorable teaching schedule with no breaks, knowing that this would be hard on an older teacher. (*Id.*)

Like with Zink, Moving Defendants only addresses one of the allegedly wrongful conduct on the part of Saig asserted in the SAC. They also fail to address whether these remaining arguments are sufficient to establish malice, oppression, or fraud. As such, Saig has not met her initial burden as to the request for punitive damages. DENIED.

Government Code § 818

Moving Defendants also contend that the request for punitive damages should be denied due to Government Code § 818. Under Government Code § 818, “[n]otwithstanding any other provision of law, a public entity is not liable for damages awarded under Section 3294 of the Civil Code or other damages imposed primarily for the sake of example and by way of punishing the defendant.” Moving Defendants argue that they cannot be liable for punitive damages because the actions at issue were done within the course and scope of their employment. They assert that the imposition of punitive damages would violate Government Code § 818. This assertion is incorrect. Government Code § 818 applies to government entities not employees of government entities.

The liability of public entities and the liability of public employees are separately and distinctly provided for in the Government Code. Section 815 provides in essence that except as otherwise provided by statute a public entity is not liable for injuries caused by its conduct or that of its employees. In contrast, section 820, subdivision (a), provides: “Except as otherwise provided by statute (including Section 820.2) a public employee is liable for injury caused by his act or omission to the same extent as a private person.” Section 818 setting forth the immunity for punitive damages expressly pertains only to public entities. There is no corresponding immunity provision pertaining to public employees. Thus, a public employee may be liable for punitive damages like a private person but unlike a public entity which is specifically immune. (*Runyon v. Superior Court* (1986) 187 Cal.App.3d 878, 881.) Moving Defendants cite to no authority to support its assertion. DENIED.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2600637	WAYNE VS UBER TECHNOLOGIES, INC.	HEARING ON MOTION TO COMPEL ARBITRATION BY UBER TECHNOLOGIES, INC.

Tentative Ruling: No tentative ruling. Hearing will be conducted on Tuesday, September 22, 2026 at 8:30 a.m. in Department PS2.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2503676	BONILLA VILLAFRANCA VS FORD MOTOR COMPANY, A DELAWARE CORPORATION	PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSE TO SPECIAL INTERROGATORIES; AND REQUEST FOR SANCTIONS

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

This is a lemon law case. Plaintiffs purchased a 2023 Ford Bronco and alleges it began experiencing issues that required numerous visits to a repair facility. Plaintiffs bring claims under the Song-Beverly Warranty Act.

On January 12, 2026, Plaintiffs sent discovery to Defendant Ford. On February 13, 2026, Ford served unverified responses to Plaintiffs' requests and later served verifications on February 20, 2026. Plaintiffs contend Defendant's responses were insufficient and required supplementation.

Plaintiffs seek to compel further responses to: (1) Special Interrogatories numbers 10, 26, 44-45, 47, and 49-58; and (2) Request for Production of Documents numbers 16-18, 20-30, and 45-59. Plaintiffs argue there is good cause to require further responses and argues Ford's responses are not code-compliant. Plaintiffs seek monetary sanctions in connection with each motion (\$2,160 for MTC SROGs and \$2,075 for MTC RPD).

Ford opposes the motions. Ford contends its objections were proper and code-compliant. Ford argues the interrogatories are overly broad and seek irrelevant information. Ford argues some of the requests improperly seek privileged information or discovery-on-discovery. Ford argues the requests for monetary sanctions should be denied because Ford has properly opposed the motions with substantial justification.

The instant motion was previously heard on July 24, 2026 and continued for counsel to meet and confer regarding a stipulated protective order that would address many of the currently disputed issues.

After meeting and conferring, the remaining disputed issues are Special Interrogatories numbers 10, 26, 47, 49-54, and 55-58.

No. 10

This interrogatory seeks facts supporting Ford's contention that the vehicle does not qualify for repurchase or replacement under the SBA. Plaintiff seeks Defendant's RAV policies from 2023 to the present. In response to the interrogatory, Ford answered by identifying various documents that supported the contention, which is permissible. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783-784.) Ford sufficiently answered the interrogatory. DENIED

No. 26

This interrogatory asked Ford to identify training for persons who evaluate repurchases generally. Ford referenced documents it had produced and explained how those documents were responsive. This is a sufficient response. DENIED.

No. 47

This interrogatory asks Ford to describe its efforts to preserve relevant and discoverable information. Ford only objected to the interrogatory. Ford argued Plaintiff is improperly seeking “discovery on discovery,” which was discussed above. Ford also argues this request violates the attorney-client privilege. Once again, without any evidence Ford has improperly preserved relevant information, this request is improper. DENIED.

Nos. 49-54, 55-58: These interrogatories seek the identities of each person involved in the “operations, maintenance, expansion, archiving, and upkeep” of Ford computer systems and asks Ford to state or specify information about the document retention policies relating to certain Ford databases. Once again, since Plaintiff has not provided any evidence that indicates Ford has improperly handled maintaining its databases or electronically stored information, the request is improper. DENIED.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2503676	BONILLA VILLAFRANCA VS FORD MOTOR COMPANY, A DELAWARE CORPORATION	PLAINTIFF’S MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE; AND REQUEST FOR SANCTIONS

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

This is a lemon law case. Plaintiffs purchased a 2023 Ford Bronco and alleges it began experiencing issues that required numerous visits to a repair facility. Plaintiffs bring claims under the Song-Beverly Warranty Act.

On January 12, 2026, Plaintiffs sent discovery to Defendant Ford. On February 13, 2026, Ford served unverified responses to Plaintiffs’ requests and later served verifications on February 20, 2026. Plaintiffs contend Defendant’s responses were insufficient and required supplementation.

Plaintiffs seek to compel further responses to: (1) Special Interrogatories numbers 10, 26, 44-45, 47, and 49-58; and (2) Request for Production of Documents numbers 16-18, 20-30, and 45-59. Plaintiffs argue there is good cause to require further responses and argues Ford’s responses are not code-compliant. Plaintiffs seek monetary sanctions in connection with each motion (\$2,160 for MTC SROGs and \$2,075 for MTC RPD).

Ford opposes the motions. Ford contends its objections were proper and code-compliant. Ford argues the interrogatories are overly broad and seek irrelevant information. Ford argues some of the requests improperly seek privileged information or discovery-on-discovery. Ford argues the requests for monetary sanctions should be denied because Ford has properly opposed the motions with substantial justification.

The instant motion was previously heard on July 24, 2026 and continued for counsel to meet and confer regarding a stipulated protective order that would address many of the currently disputed issues.

After meeting and conferring, the remaining disputed issues are numbers 47, 48, 50-54, and 55-60.

Request for Further Production of Documents

No. 47

This request seeks documents reflecting Ford's preservation efforts. Plaintiff argues this request goes directly to whether Ford complied with its duty to preserve evidence once litigation was reasonably anticipated and whether relevant documents were withheld or destroyed. Ford argues this request is overbroad, especially since Plaintiff has not identified any documents missing from Ford's production. Ford notes it is a large company with many databases and applications and Plaintiff is simply not entitled to information regarding Ford's databases and computers.

Plaintiff is correct this information is, in theory, relevant for purposes of discovery. Ford, however, has an appropriate objection based on impracticality of obtaining that information or undue burden/expense in compiling it. Ford references one federal case to support its assertion that discovery is not permitted as to the entire structure of the computer system that generates requested information. (*Watkins v. Hireright, Inc.* 2013 WL 10448882 *3 (S.D. Cal. Nov. 18, 2023).) Although this is a federal case and is not binding authority, the discussion is useful here. The Court found "discovery about discovery" was not proper where the requesting party had not provided any evidence or support for the idea that the responding party had behaved improperly with respect to its efforts to preserve electronic data. The court also noted the moving party had already received a "voluminous amount of discovery" from the responding party. The court found the moving party was not entitled to "independently assess the adequacy of [Defendant's] preservation." (Ibid.)

Here, Plaintiff has not shown any evidence that Ford improperly preserved documents. For this reason, the request is improper. DENIED

No. 48

This is the first time the parties have discussed this request. The notice of motion indicates this is part of Plaintiff's motion, but the separate statement does not include this request and the parties did not argue it in the initial motion. Since this is not a part of the separate statement and the court has not heard arguments about this request previously, the request is DENIED.

Nos. 50-54

These requests seek documents concerning the backup procedures for critical business data, such as customer call logs, complaints, customer warranty claim records, and technical assistance cases from 2023 to the present. Ford objects arguing these requests are overbroad and irrelevant. Ford again references the federal case discussed above. Plaintiff is again seeking discovery on discovery. Without any evidence that Ford improperly backed up these files, the request is improper. DENIED.

Nos. 55-60

These requests seek retention policies and procedures, as well as the databases where Ford stores policies and procedures used to evaluate repurchase or replacement requests from 2023 through the present. Ford makes the same arguments in opposition to these requests. For the same reasons discussed previously, the request is improper. DENIED.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2507058	GUTIERREZ VS GENERAL MOTORS, LLC	MOTION FOR ATTORNEYS FEES BY AMARO YAVE GUTIERREZ

Tentative Ruling: Granted.

Plaintiff is granted attorney fees in the reduced, but reasonable amount of \$6,930.00 and costs in the amount of \$705.21. Defendant is ordered to pay fees and costs within 30 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

This Song-Beverly action arises out of Plaintiff Amaro Yave Gutierrez' ("Plaintiff") purchase of a new 2024 Chevrolet Silverado 1500 ("Vehicle"), which was sold with a warranty issued by Defendant General Motors, LLC ("Defendant"). Plaintiff alleged that after its purchase, the Vehicle exhibited numerous serious defects and nonconformities to warranty.

Accordingly, on September 19, 2025, Plaintiff filed a Complaint against Defendant, asserting causes of action for: (1) Breach of the Implied Warranty of Merchantability; (2) Breach of Express Warranty; (3) Failure to Promptly Repurchase Product; and (4) Failure to Commence Repairs Within a Reasonable Time and Complete Them Within 30 Days.

On March 10, 2026, Plaintiff filed a Notice of Settlement of Entire Case.

Plaintiff now moves for an award of \$10,642.71 in attorney fees and costs, calculated as \$9,937.50 in attorney fees using the lodestar method (including \$1,875.00 in anticipated fees) and \$705.21 in incurred costs and expenses.

In opposition, Defendant argues the Court should reduce the requested award because counsel's hourly rate and expended time are unreasonably excessive. Defendant further contends that several time entries should not be recoverable as legal fees because they include time spent on business overhead and administrative tasks.

Song Beverly Attorney Fees

Under Civil Code § 1794(d) (Song-Beverly Act), "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

Here, Plaintiff accepted Defendant's C.C.P. § 998 offer, which states that Plaintiff are the prevailing party and that Defendant shall pay Plaintiff's attorney fees, costs, and expenses upon separate motion. (Hoddick Decl., ¶ 5.)

At issue in this motion is the reasonableness of Plaintiff's request. The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party's attorney fees. These include "the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney's efforts, and time consumed. [Citation omitted.]" (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.)

Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

In the present matter, the procedural history includes only a Complaint, Answer, and Notice of Settlement. There is no evidence that the parties engaged in any law and motion, or that the case involved anything more complicated than a routine Song-Beverly claim.

Lodestar is the objective starting point to determine if attorney fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hour spent on the case. (*Ibid.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

Based on the time records and Declaration of Larry R. Hoddick, ¶ 6, counsel expended 13.5 hours at an hourly rate of \$625.00, incurring a lodestar of \$8,437.50.

As previously discussed with Plaintiff's counsel at hearing on attorney fee motions on the same subject matter, counsel's hourly rate does not appear to be reasonable for Riverside County. This court has previously granted \$550.00 an hour.

Further, a review of the billing records reveals that counsel billed for pre-retention services, such as meeting with the potential client. Plaintiff argues that client intake services are recoverable because they are reasonably incurred in connection with the commencement of a Song-Beverly action. (Civ. Code § 1794(d).) However, "by definition, the term 'attorney fees' implies the existence of an attorney-client relationship, i.e., a party receiving professional services from a lawyer." (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1094, 1092.) "Whether fees are incurred is evidenced by an obligation to pay attorney fees, the existence of an attorney-client relationship...." (*Dzwonkowski v. Spinella* (2011) 200 Cal.App.4th 930, 935.) Accordingly, the court strikes 1.0 hour from Attorney Hoddick's billing.

Upon review of the allegations set forth in the Complaint, 1.2 hours is excessive. A more reasonable amount is .5 hours. Serving the complaint is also a clerical task. Accordingly, the court strikes 0.9 hour from Attorney Hoddick's billing.

Counsel then seeks 3.0 hours in anticipated fees to review the opposition, draft the reply, and attend the hearing on this motion. However, counsel already billed 3.0 hours for drafting the initial fee motion. Accordingly, the court strikes 2.0 hours from the anticipated fees, and awards only 1.0 hour in anticipated fees.

As for the remaining time entries, they are reasonable under the circumstances. Defendant's challenges for unnecessary/overbilled tasks, discovery, etc. are not supported. As such, the court awards Plaintiff's counsel the reasonably reduced amount of \$6,930.00 in attorney fees, represented by 12.6 hours at a rate of \$550.00/hour.

Costs

Civil Code §1794(d) permits the court to award reasonably incurred costs and expenses. Under the Song-Beverly Act, the Legislature intended the use of “costs and expenses” to include items excluded under C.C.P. §1033.5. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138; accord *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42-43.)

Here, the underlying action was resolved after Plaintiff accepted Defendant’s § 998 offer. C.C.P. § 998 provides: “Not less than 10 days prior to commencement of trial . . . , any party may serve an offer in writing upon any other party to the action to allow judgment to be taken or an award to be entered in accordance with the terms and conditions stated at that time. The written offer shall include a statement of the offer, containing the terms and conditions of the judgment or award, and a provision that allows the accepting party to indicate acceptance of the offer by signing a statement that the offer is accepted. Any acceptance of the offer . . . shall be in writing and shall be signed by counsel for the accepting party or, if not represented by counsel, by the accepting party.” (C.C.P. § 998(b) [emphasis added].) Accordingly, the terms of Defendant’s § 998 offer govern the parties’ settlement, including Plaintiff’s recoverable costs. Although neither party attaches a copy of the § 998 offer, Defendant acknowledges that the offer provided for “reasonable fees/costs in the amount of \$3,500 or an amount to be determined by motion.” (Kay Decl., ¶ 10.)

Plaintiff has not filed a separate memorandum of costs, but seeks to recover \$705.21 in costs through this motion. Defendant seeks to strike service of process fees (\$50.00), additional court filing fees (\$94.66), and motion filing fees (\$87.25).

Defendant argues that the service of process fees (\$50.00) were optional, and that it has already paid for the Complaint to be filed. However, C.C.P. § 1033.5(a)(4) allows for the recovery of service of process fees.

Defendant then argues that Plaintiff has not provided an adequate description for the additional court filing fees (\$94.66) and motion filing fees (\$87.25). However, Plaintiff attaches receipts for e-filing a proof of service (\$22.30) and notice of settlement of the entire case (\$24.12.) (Hoddick Decl., Exh. 2.) In his reply, Plaintiff contends that the receipts for the \$87.25 motion filing fee, \$24.12 filing fee for the reply brief, and \$24.12 filing fee for the request for dismissal were not yet available at the time the motion was filed. Accordingly, Plaintiff’s costs for filing fees are reasonably incurred.